

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SCOTT DICKIE,

Petitioner

VS.

JANET LEE,

Respondent

) Case Number: FDI-25-801379

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: CINDEE MAYFIELD

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Scott Dickie (Father) and Respondent Janet Lee (Mother) married on 9/5/2009. Both parties state their date of separation is "TBD." Father filed the Petition for Dissolution on 5/15/2025. The parties have two minor children, William (DOB: 10/23/2012, age 13) and Sophia (DOB: 5/11/2016, age 10). Father is represented in limited scope by attorney Kristen Van Antwerp of Moradi Neuffer LLP. Mother is represented by attorney Lisa Tarr of Winter & Ross.
- 2) On 11/21/2025, a Stipulation and Order was entered which provides for joint legal and joint physical custody of the minor children and for the parties to share custody on a week-on, week-off basis. The Stipulation also provides that Father shall move out of the family residence no later than 11/23/2025, Mother shall have exclusive use of the property thereafter, and Mother is responsible for paying the carrying costs for the marital residence.
- 3) On for hearing is Father's Request for Order filed 12/15/2025 seeking guideline child support, temporary guideline spousal support, and Smith / Ostler child and temporary spousal support retroactive to 11/22/2025 (the date Father vacated the family residence); an order for sharing of

1 mandatory and agreed-upon child support add-ons (including private school tuition for each child
2 to finish middle school); and an order requiring that the parties' vacation property in Truckee, CA
3 be listed for sale no later than 5/1/2026. Father states that Mother has signed up the children for
4 an overwhelming number of extracurricular activities despite his objections, including
5 Mathnasium, chorus, piano lessons, French class, Cantonese class, high school preparation class,
6 robotics class, soccer, and volleyball. Father states that he agrees for William to participate in
7 chorus and one other activity of his choice, for Sophia to participate in chorus and soccer or
8 another activity / sport of her choice. Father states that he will only agree to contribute to the cost
9 for additional extracurricular activities if the parties agree upon participation.

10 4) On 12/15/2025, Father filed a Memorandum of Points and Authorities in Support of his Request
11 for the Sale of Vacation Property citing Family Code section 2108.

12 5) On 12/15/2025, Father filed an Income and Expense Declaration.

13 6) On 12/15/2025, Father filed a Statement of Support Calculations.

14 7) On 3/24/2026, Father filed an Income and Expense Declaration.

15 8) On 4/3/2026, Mother filed a Responsive Declaration wherein Mother agrees to pay guideline
16 child support retroactive to 12/15/2025 (the date Father filed his Request for Order) and for
17 Father to pay guideline child support to her effective 10/1/2026 (when Mother's severance pay
18 will "run out"). Mother asks that the Court not award Father retroactive or prospective temporary
19 spousal support. Mother requests temporary spousal support payable by Father effective
20 10/1/2026. Mother also requests that the Court deny Father's request to compel the sale of the
21 Tahoe property. Mother requests orders confirming the parties will have equal management and
22 control of their real properties going forward and will share equally the financial responsibility
23 for those assets while the dissolution is pending. Mother states she was terminated from her
24 employment effective 3/13/2026 and is currently receiving disability benefits of \$1,765 per week.
25 Mother states she expects to receive a lump sum severance payment of \$190,000, which Mother
26 states represents 26 weeks of base pay (\$25,000 per month) plus a \$40,000 "special payment."
27 Mother states Father does not currently need spousal support and even if her severance pay and
28 disability income are "technically greater" than Father's income, Father can support himself,
29

1 whereas her income is temporary and will soon be in need of support from Father. Mother asks
2 that the children's "status quo extracurricular activities" be included in shared add-ons.

3 9) On 4/3/2026, Mother filed an Income and Expense Declaration.

4 10) On 4/3/2026, Mother filed a Declaration by James Good, CPA, CFF with a Statement of Support
5 Calculations.

6 11) On 4/9/2026, Father filed a Reply Declaration in Support of his Request for Orders for Child
7 Support, Spousal Support, and Sale of Truckee, CA reiterating his original requests. Father states
8 they cannot afford to pay for more than two to three extracurricular activities per child which is
9 more than reasonable.

10 12) On 4/9/2026, Father filed an Updated Statement of Support Calculations.

11 13) At the prior 4/16/2026 hearing, the Court continued the hearing on Father's 12/15/2025 Request
12 for Order to 6/16/2026.

13 14) On 5/15/2026, Judge Mori issued a Findings and Order After Hearing adjudicating disputes
14 between the parties regarding custody orders. Judge Mori also made the following order
15 regarding extracurricular activities: "Mother's request for the children to remain in their math
16 tutoring and language classes until the parties agree otherwise or further order of the Court is
17 granted. The children may participate in any additional regularly-occurring, i.e., weekly, bi-
18 weekly, etc., extracurricular activities only by mutual agreement of the parties or Court order."

19 15) On 6/9/2026, Father filed Initial Reports Regarding Income Available for Support, Retroactive
20 Support for December 2025 Through May 31, 2026 and Current Support Beginning June 1, 2026
21 and Onward, and XSpouse Inputs / Reports.

22 16) On 6/10/2026, Mother filed an Update Declaration. Mother states she began a new job as
23 Managing Director at Texas Capital on 5/27/2026. Mother modifies her requests related to child
24 and spousal support. Mother now agrees to sell the Truckee property.

25 17) On 6/10/2026, Mother filed a Declaration by James Good, CPA, CFF with a Statement of
26 Support Calculations.

27 **B. Findings and Order**

28 1) Father's request for child and spousal support retroactive to a date before he filed his Request for
29 Order is denied.

1 2) Support and Add-Ons for the Period 12/15/2025 – 5/31/2026

- 2 a. The Court's jurisdiction to make orders regarding child support and temporary spousal
- 3 support for the period 12/15/2025 (the date Father filed his Request for Order) through
- 4 5/31/2026 is reserved.
- 5 b. Mother's request that the Court set spousal support payable to Father during this period at
- 6 \$0 is denied.
- 7 c. The parties shall meet and confer to calculate guideline child and guideline temporary
- 8 spousal support for this period based upon base income received by the parties during this
- 9 period, including but not limited to base employment income, Mother's severance pay,
- 10 and Mother's disability income.
- 11 d. Equity compensation, bonuses, and Mother's severance pay received for the period
- 12 6/1/2026 – 9/30/2026 plus the \$40,000 special payment she received shall be subject to
- 13 Smith / Ostler bonus tables, to be trued up in 2027.
- 14 e. The parties shall also meet and confer regarding reimbursements owed for child support
- 15 add-ons (mandatory add-ons as defined by Family Code section 4062(a), private school
- 16 tuition, and court-ordered and agreed-upon extracurricular activities) for the period
- 17 12/15/2025 through 5/31/2026. The Court's jurisdiction to resolve any issues is reserved.
- 18 f. If the parties are unable to reach an agreement on these issues, the parties shall return for
- 19 a review hearing on these issues on **Tuesday, 8/25/2026 at 9:00 AM in Dept. 404**. At
- 20 least 10 calendar days prior to the hearing date, both parties shall file one Statement of
- 21 Support Calculation which provides XSpouse calculations for the relevant periods
- 22 between 12/15/2025 – 5/31/2026, plus Smith / Ostler bonus tables for each relevant
- 23 period, and one declaration (not to exceed 5 pages excluding exhibits) explaining any
- 24 remaining disputes.

25 3) Support and Add-Ons Effective 6/1/2026

- 26 a. Mother's request that the Court set temporary spousal support for Father at \$0 effective
- 27 6/1/2026 is denied.
- 28 b. Effective 6/1/2026, in accordance with the XSpouse calculation attached as Exhibit C to
- 29 the Declaration by James Good, CPA, CFF filed 6/10/2026, Mother shall pay Father \$412

per month in temporary guideline base spousal support and \$991 per month in guideline base child support, for total base support due of \$1,403 per month on or before the first of each month.

- c. Effective 6/1/2026, the parties shall pay additional Smith-Ostler guideline child and temporary spousal support on any additional income they receive in excess of their respective base monthly income as attributed in the XSpouse report attached as Exhibit C to the Declaration by James Good, CPA, CFF filed 6/10/2026, in accordance with the parties' respective bonus tables. Bonus child and temporary spousal support payments shall be made pursuant to a true-up, to occur annually.
- d. Commencing in the year 2027, the parties shall exchange documentation annually on May 1st, of all income received preceding calendar year, and any bonus child and temporary spousal support owed between them for such 12-month period shall be paid no later May 15th. The true-ups shall include an exchange of the parties' tax returns for the previous year once both filed returns are available, to ensure the correct amount of support is paid annually.
- e. As the parties' net spendable base incomes are essentially equalized after base child and temporary spousal support are paid, effective 6/1/2026, the parties shall share equally all mandatory add-on expenses per Family Code section 4062(a).
- f. Regarding discretionary add-ons, the parties shall share equally the costs for the children to participate in any court-ordered extracurricular activities and mutually agreed upon activities. The parties shall also share equally the children's private school tuition for the 2026 – 2027 school year.

4) Sale of Tahoe Property

- a. The property located at 12983 Stockholm Way, Truckee, CA 96161 ("Tahoe Property") shall be listed for sale as follows.
- b. The parties shall select a mutually agreeable realtor.
- c. The parties shall consult with and give substantial weight to the realtor's recommendations and opinions as to the timing of the listing, listing price, any minor

recommended repairs, and staging of the property. The parties shall respond timely to any offers of purchase and shall not unreasonably withhold acceptance.

d. The Court shall retain jurisdiction to resolve any disputes over all aspects of the listing and sale process, including but not limited to timing and price, improvements and/or repairs to ready the Tahoe Property for sale, escrow instructions and acceptance of offers of purchase.

e. Pending the sale of the Tahoe Property, the carrying costs and any agreed-upon costs to ready the property for sale shall be paid equally by the parties.

f. Upon the sale of the Tahoe Property, the sales proceeds net of transactional costs and after satisfaction of any encumbrances including the mortgage loan, shall be distributed as follows:

i. Each party shall receive an advance against his/her share of the community property in the amount of \$50,000, which shall be confirmed to him/her as his/her sole and separate property, free and clear of the Standard Family Law Restraining Orders.

ii. The remaining net proceeds shall be deposited into an interest-bearing joint account from which no withdrawals shall be made in the absence of the mutual written agreement of the parties or order of the court.

iii. The parties shall meet and confer in order to allow for the payment of any actual or estimated tax liabilities associated with the sales proceeds from the joint account.

5) Father's attorney shall prepare the Findings and Order After Hearing.

6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).